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File No.: EXP202401975

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on January 4, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On January 4, 2024, a complaint was received by this Agency submitted by Mr. A.A.A. (hereinafter, the complainant) against the MINISTRY OF THE PRESIDENCY, JUSTICE AND RELATIONS WITH THE COURTS (hereinafter, the respondent) for not having duly addressed his right to the erasure of his personal data. In said document, the complainant states the following:

- He asserts that, on July 29, 2017, the complainant requested the respondent to cancel his criminal record. On November 8, the respondent replied indicating that it had agreed to the cancellation of the requested criminal records.
- That the respondent issued a certificate on November 21, 2017, indicating that "No criminal records exist."
- That subsequently, on December 29, 2023, the respondent issued another certificate indicating that there are criminal records, being the Cause/Execution the same one for which cancellation had been agreed.

He provides, along with his document, a copy of the cancellation request, the response agreeing to said cancellation, as well as both certificates issued by the Central Criminal Record, dated December 21, 2017, and December 29, 2023.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record that the respondent has submitted any response.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on April 4, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent a hearing period, to present any allegations deemed appropriate within ten working days.

On August 2, 2024, the respondent submitted a written statement of allegations in which it summarizes the following:

"(...) The interested party requests the cancellation of his criminal records, not expressly asking to exercise his data protection rights. The interested party requested the cancellation of criminal records in 2017, notifying the cancellation resolutions of Execution XXXX/13, canceled at the request of the party on 12/7/2017, and of Execution XXX/2012, canceled at the request of the party on 8/11/2017. Subsequently, a new cancellation request was submitted on 10/03/2020, for a new case, Execution XX/2019, with a cancellation resolution sent at the request of the party dated 8/5/2020, by postal mail to the address indicated in the request.

4. The criminal record that was erroneously duplicated (Document 6) has been deleted, and the erroneously issued certificate (Document 7) has been annulled.

5. The resolution has been sent to the complainant, informing him of the deletion of the criminal record that was erroneously duplicated in his criminal history sheet. Likewise, the erroneous certification

subject to the complaint is annulled. A new certification of the absence of criminal records is not provided, as this situation already existed at the date of the certification subject to the complaint, because one had already been issued on 13/01/2024.”

The respondent adds that “(...) On 10/01/2024, the RCP unified the two criminal histories registered in the name of the complainant (Document 5), due to discrepancies in the personal data, and the annotation corresponding to the criminal record subject to the complaint that appeared as active (Document 6) has been deleted. (...)”

FOURTH: After examining the document submitted by the respondent, it was forwarded to the complainant, so that, within ten working days, he could formulate any allegations he deemed appropriate, with no record of any allegations being made within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on April 4, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing under Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing under Article 21(2);
- d) the personal data have been unlawfully processed;

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e) personal data must be erased for compliance with a legal obligation established in Union or Member State law applicable to the data controller;

f) personal data have been obtained in relation to the offering of information society services mentioned in Article 8, paragraph 1.

2. When the data controller has made personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers processing the personal data of the data subject's request for erasure of any link to those personal data, or any copy or replica of the same.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 may render impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

In the case analyzed here, from the examination of the documentation, it has been established that the claiming party requested the erasure of their criminal records from the responding party and, although the latter replied indicating that it would attend to their request, the data of the claiming party were not effectively erased as they are erroneously duplicated.

Regarding the first point of the allegations presented by the responding party, which asserts that the data subject's request in 2017 focused solely on the cancellation of criminal records and not on the exercise of their data protection rights, it is necessary to clarify that this interpretation is not accurate. The right to erasure, regulated in Article 17 of the GDPR, includes the deletion of personal data that are no longer necessary for the purposes for which they were collected or processed. In this case, the cancellation of criminal records constitutes, in essence, a request for the erasure of specific personal data from the Central Criminal Record.

Furthermore, Article 12 of the GDPR establishes that the data controller has the obligation to facilitate the exercise of the rights of the data subject. This implies that

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Any request related to your personal data must be interpreted broadly and proactively. Although the interested party did not expressly use the term "right to erasure," the request for the deletion of their criminal record should be understood as such, since the ultimate goal was the removal of personal information from the record. The regulation does not require the interested party to use specific technical terminology for their right to be recognized and exercised.

In conclusion, the request for the cancellation of criminal records made by the interested party should be interpreted as an exercise of their right to erasure of personal data. The response of the respondent, which limits the request to a merely administrative matter, contravenes the spirit of data protection regulations.

However, it should be noted that, during the processing of this procedure, the respondent has proceeded to correct the error and has deleted the requested data, communicating this circumstance to the claimant.

Consequently, it is appropriate to uphold, for formal reasons, the complaint submitted as the requested right has been addressed after the established deadline for it.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Mr. A.A.A. against the MINISTRY OF THE PRESIDENCY, JUSTICE AND RELATIONS WITH THE COURTS. However, a new certification from the respondent is not required, as the right has been addressed out of time, without the need for additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to the MINISTRY OF THE PRESIDENCY, JUSTICE AND RELATIONS WITH THE COURTS.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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